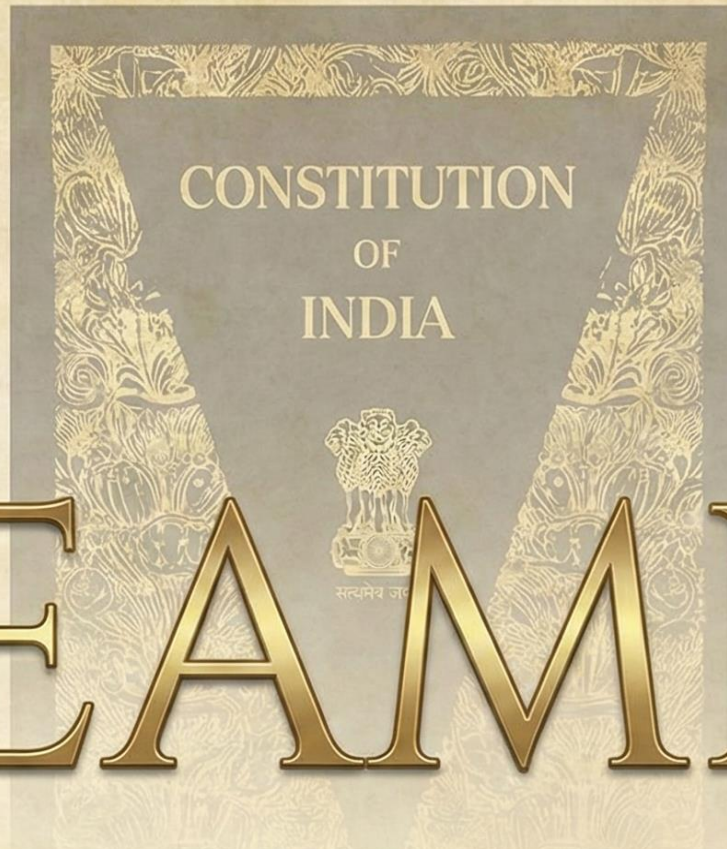




PREAMBLE

Created by Vipul Sir-Polity

The Preamble to the Constitution of India

The Soul of the Constitution. The Identity Card of the Nation.



This document serves as the introduction, outlining the philosophy, objectives, and nature of the Indian State.

The Preamble to the Constitution of India

The Soul of the Constitution. The Identity Card of the Nation.

Source of Authority

Derived from the citizens of India, indicating popular sovereignty.

Nature of State

Describes India's political structure as independent, socially accountable, impartial in religion, democratic, and a republic.

Objectives

The fundamental goals: fair treatment, individual freedom, equal rights, and national brotherhood.

Date of Adoption

The historical date when the Constitution was formally adopted and enacted by the Constituent Assembly.

resolved to constitute India into a

SOVEREIGN SOCIALIST SECULAR DEMOCRATIC

REPUBLIC and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity;

and to promote among them all

FRATERNITY assuring the dignity of the individual

and the unity and integrity of the Nation;

IN OUR **CONSTITUENT ASSEMBLY**

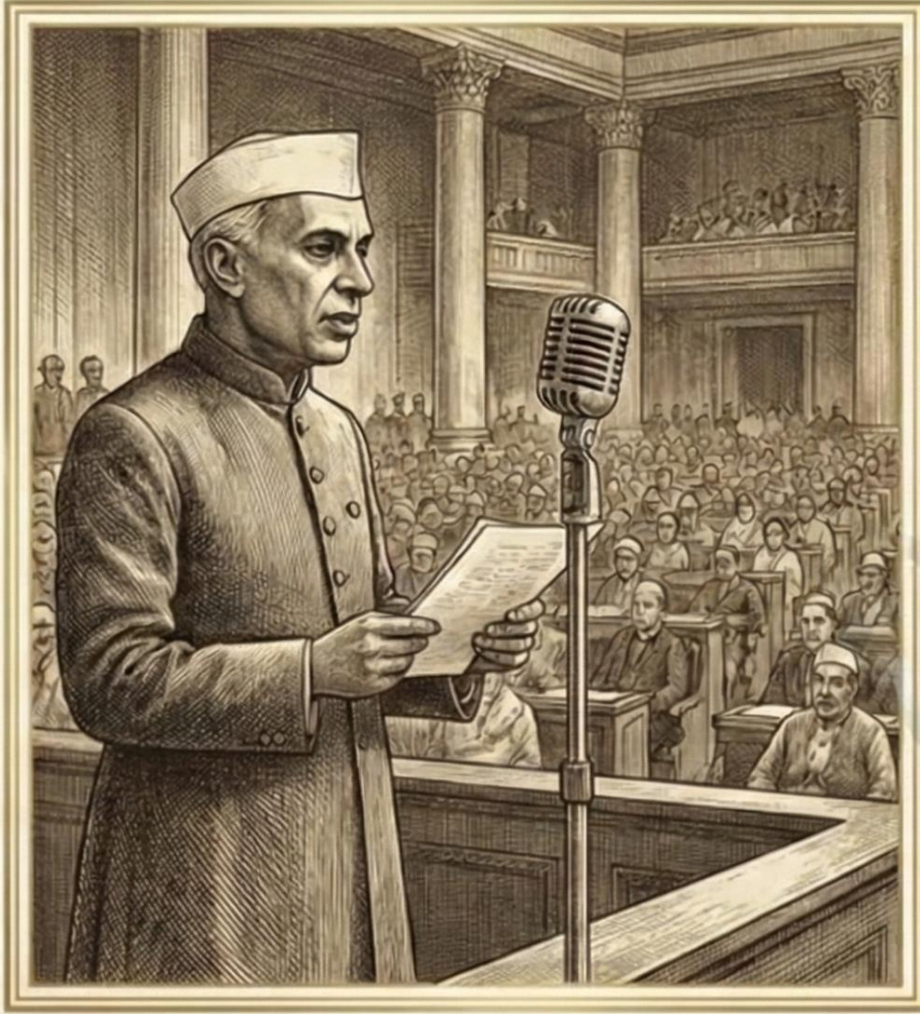
this **twenty-sixth day of November, 1949**, do

HEREBY ADOPT, ENACT AND GIVE TO

OURSELVES THIS CONSTITUTION.

Key Insight

The Preamble is the summary of the ultimate objectives, adopted after the draft was finalized.



THE BLUEPRINT: THE OBJECTIVES RESOLUTION

December 9, 1946: First meeting of the Constituent Assembly.

December 13, 1946: Objectives Resolution moved by Jawaharlal Nehru.

January 22, 1947: Resolution unanimously adopted.

The Preamble is a modified version of this Resolution. It laid down the fundamentals and philosophy of the constitutional structure.



From Adoption to Commencement

November 26, 1949

ADOPTION

The people "Adopt, Enact, and Give to themselves" the Constitution.

January 26, 1950

COMMENCEMENT

The date the Constitution came into full force.

Did You Know?

Why January 26?
Chosen to honor the
"Purna Swaraj" (Total
Independence) Day
celebrated by the
Congress on January
26, 1930.

The Preamble text specifically mentions Nov 26, 1949, as the date of adoption.

The Source of Authority

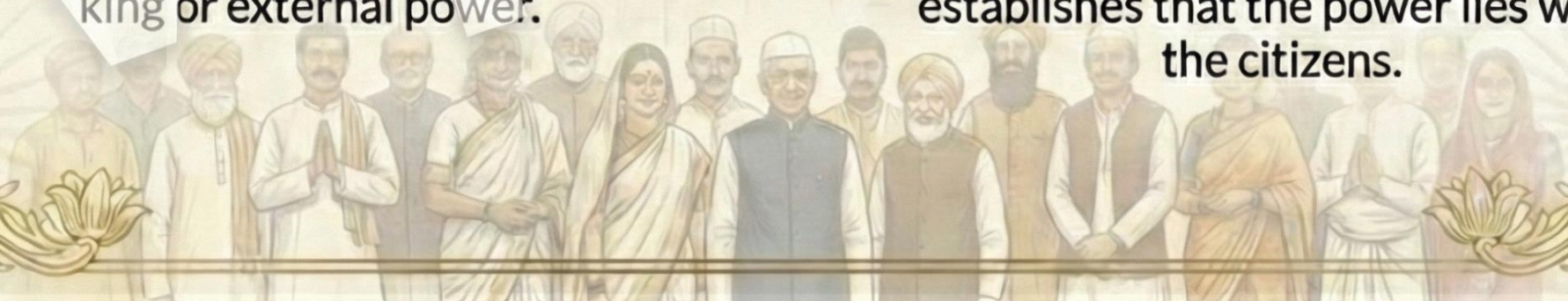
We, the People of India

Concept: Popular Sovereignty

The Constitution derives its authority directly from the people, not from a king or external power.

Global Influence: USA

Borrowed from the American Constitution ("We, the People..."). It establishes that the power lies with the citizens.



Nature of the State: Sovereign



India is internally supreme and externally free.

- No external power dictates India's policy.
- India is neither a dependency nor a dominion of any other nation.
- It can acquire foreign territory or cede a part of its territory in favor of a foreign state.



Nature of the State: Socialist

Added by
42nd
Amendment
(1976)

The Indian Brand

Democratic Socialism (distinct from Communist Socialism). It advocates a Mixed Economy where Public and Private sectors coexist.



Core Meaning & Objectives

- To end poverty, ignorance, disease, and inequality of opportunity.
- Strong link to the Directive Principles of State Policy (DPSP).



Nature of the State: Secular

Added by
42nd
Amendment
(1976)

The Indian Model: Positive Secularism

- The State has no religion of its own.
- The State gives equal respect and protection to all religions.



Context:

While added to the Preamble in 1976, the spirit existed in the original Constitution through Articles 25–28 (Freedom of Religion).



Democratic and Republic

DEMOCRATIC



- Parliamentary Representative Democracy.
- Based on Universal Adult Franchise.
- Periodic elections and the rule of law.

REPUBLIC



- Head of State (President) is elected, not hereditary.
- Political sovereignty is vested in the people.
- Public offices open to all without discrimination.

Objective: Justice

SOCIAL Justice

End of discrimination
(caste, race, religion,
sex) and special
privileges.

ECONOMIC Justice

Eliminating glaring
inequalities in
wealth, income,
and property.

POLITICAL Justice

Equal political rights
and access to
political offices.

Global Influence: Borrowed from the ideals of the French Revolution.

The Trinity: Liberty, Equality, Fraternity

LIBERTY:

Freedom of thought, expression, belief, faith, and worship.
(Not absolute license; subject to reasonable restrictions).

LIBERTY

EQUALITY:

Absence of special privileges. Equality of status and opportunity.

EQUALITY

FRATERNITY

FRATERNITY:

A sense of brotherhood. Essential for ensuring the dignity of the individual.

Global Influence: Borrowed from the ideals of the French Revolution.

The 42nd Constitutional Amendment Act (1976)



Significance:

This is the only time the Preamble has been amended. These additions made explicit what was already implicit in the Constitution.

Is the Preamble Enforceable?



Legal Status: Non-Justiciable

- Its provisions are not enforceable in courts of law.
- It is not a source of power to the legislature, nor a prohibition on its powers.

Utility: It acts as a guiding light. Where the text of the Constitution is ambiguous, the judiciary turns to the Preamble to interpret the true intent of the framers.

The Judicial Conflict: Part or Not a Part?

Berubari Union Case (1960)

Verdict: The Preamble is NOT a part of the Constitution.

Reasoning: It serves as a key to the minds of the makers but has no substantive power.

Kesavananda Bharati Case (1973)

Verdict: The Preamble IS an integral part of the Constitution.

Reasoning: The Court rejected the Berubari opinion. It can be amended, provided the "Basic Structure" is not destroyed.

Reinforcing the Structure

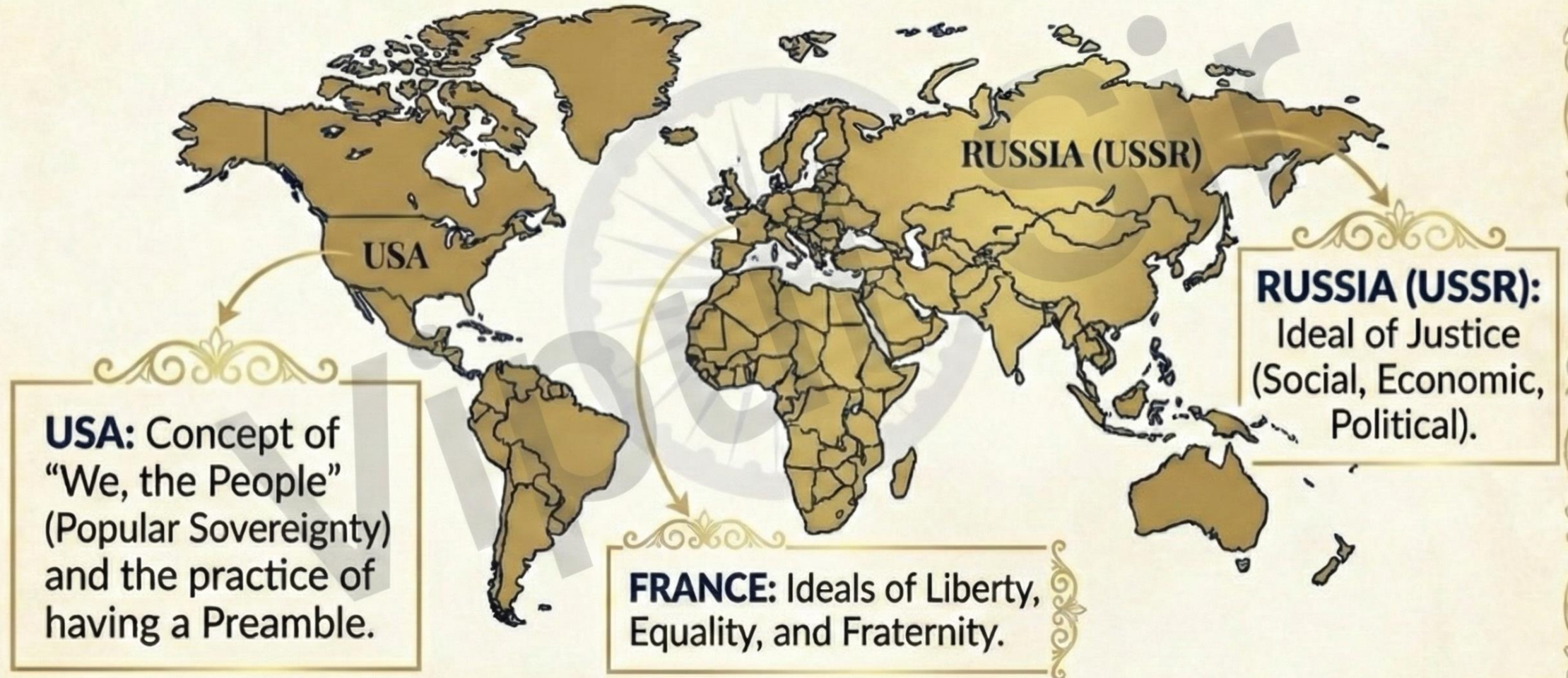
S.R. Bommai Case (1994):
Ruled that 'Secularism' is
a Basic Feature.



LIC of India Case (1995):
Reiterated that the
Preamble is an integral
part of the Constitution.

The Basic Structure Doctrine: Elements like Democracy, Secularism, and Integrity cannot be removed, even by constitutional amendment.

Global Influences (Cheat Sheet)



Using ‘influence’ is the safest terminology for exams.

Rapid Revision Points

- ✓ **Origins:** Objectives Resolution (Moved Dec 13, 1946; Adopted Jan 22, 1947).
- ✓ **Adoption Date:** Nov 26, 1949.
- ✓ **Commencement Date:** Jan 26, 1950 (Linked to 1930 Purna Swaraj).
- ✓ **Amendment:** 42nd Act, 1976 (Added: Socialist, Secular, Integrity).
- ✓ **Legal Status:** Integral part of the Constitution (Kesavananda Bharati, 1973), but non-justiciable.
- ✓ **Quote:** It is the 'Key to the Constitution' and 'Identity Card of the Constitution'.